

The Advisory Board for the Metro Railways (Transaction of Business) Rules, 2012

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The Advisory Board for the Metro Railways (Transaction of Business) Rules, 2012

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The Advisory Board for the Metro Railways (Transaction of Business) Rules, 2012

Rule THE-ADVISORY-BOARD-FOR-THE-METRO-RAILWAYS-TRANSACTION-OF-BUSINESS-RULES-2012 of 2012

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The Advisory Board for the Metro Railways (Transaction of Business) Rules, 2012

Published vide Notification New Delhi, the 30th May, 2012

Ministry of Urban Development

G.S.R. 408(E). - In exercise of the powers conferred by sub-section (5) of section 4 of the Metro Railways (Construction of Works) Act, 1978 (

33 of 1978

), the Central Government hereby makes the following rules with respect to the procedure in regard to the transaction of the business of the Advisory Board for Metro Railways, namely : -

1.

Short title and commencement.

(1)

These rules may be called "The Advisory Board for the Metro Railways (Transaction of Business) Rules, 2012".

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context is otherwise requires, -

(a)

"The Act" means the Metro Railways (Construction of Works) Act, 1978;

(b)

"Board" means the Advisory Board for Metro Railways constituted under section 4 of the Act;

(c)

"Chairman" means the Chairman of the Advisory Board for Metro Railways;

(d)

"Member" means a member of the Advisory Board for Metro Railways.

3.

Meetings.

- The Chairman may, whenever he thinks fit and shall within fifteen days of the receipt of a requisition in writing from not less than one-half of the members, can a meeting of the Board.

4.

Notice of meetings.

(1)

The Chairman shall decide the date, time and place of every meeting.

(2)

Ordinarily, notice of not less than fifteen days from the date of posting thereof shall be given to every member for each meeting of the Board.

(3)

A list of business proposed to be transacted at the meeting shall be attached with the notice.

(4)

If it is necessary to convene an emergent meeting, at least seven days notice shall be given to every member.

5.

Chairman of the meeting.

(1)

The Chairman shall preside at the meetings and in the event of the absence of the Chairman, the members present may elect one amongst themselves to preside at the meeting.

(2)

The Chairman shall be authorised to determine the frequency and place of its meetings and procedure in regard to transaction of its business.

6.

Quorum.

- No business shall be transacted at any meeting unless at least one-third members are present:

Provided that if at any meeting less than one-third members are present, the Chairman may adjourn the meeting for an hour or so, as considered appropriate, and it shall thereupon be lawful to dispose of the business at such adjourned meeting irrespective of the number of members attending it.

7.

Disposal of business.

- Any business which requires consideration by the Board shall be considered at a meeting thereof:

Provided that the Chairman may, if he thinks fit, direct that the necessary papers may be referred for opinion to all members:

Provided further that the decision on any question which is so referred shall be acted upon only if it is supported by not

less than a two-thirds majority of the members of the Board and where there is no majority or where the Chairman so decides, the question shall be considered at a duly convened meeting of the Board.

8.

Method of voting.

- Voting shall ordinarily be by show of hands and if any member asks for voting by ballot, or if the Chairman so decides, the voting shall be by secret ballot and shall be held in such manner as the Chairman may desire.

9.

Decision by majority.

- Every question at a meeting of the Board shall be decided by a majority of the votes of the members present and voting:

Provided that in the case of equality of votes, the Chairman or the person presiding shall have a casting vote.

10.

Proceedings of the meeting.

(1)

The proceedings of each meeting showing, inter alia, the names of the members present thereat shall be forwarded to each member of the Board, to the Central Government and to all concerned Metro Railway Corporation or Metro Rail Limited where the Act is in force, as soon after the meeting as possible and, in any case, not less than seven days before the next meeting.

(2)

The minutes of each meeting shall be confirmed with such modifications as may be considered necessary at the next meeting.

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